IN THE NATIONAL COMPANY LAW TRIBUNAL
AHMEDABAD BENCH
DIVISION BENCH
COURT - 1

ITEM No.205

C.P.(CAA)/12(AHM)2023 in
C.A.(CAA)/57(AHM)2022

Order under Sections 230-232 of the Companies Act 2013

IN THE MATTER OF:

Amneal Injectables Private Limited **.....Applicants**
Puniska Healthcare Private Limited
Amneal Pharmaceuticals Private Limited

Order delivered on ..17/07/2023

Coram:

Mr. Shammi Khan, Hon'ble Member(J)
Mr.Kaushalendra Kumar Singh, Hon'ble Member(T)

ORDER

The case is fixed for pronouncement of the order. The order is pronounced in the open court, vide separate sheet.

-SD-

KAUSHALENDRA KUMAR SINGH
MEMBER (TECHNICAL)

-SD-

SHAMMI KHAN
MEMBER (JUDICIAL)

NATIONAL COMPANY LAW TRIBUNAL
AHMEDABAD
DIVISION BENCH
COURT-1

CP (CAA) No.12/NCLT/AHM/2023 in
CA(CAA)No.57/NCLT/AHM/2022

[Application under Sections 230-232 of the Companies Act, 2013 read with the Companies (Compromise, Arrangement and Amalgamation) Rules, 2016]

Scheme of Arrangement

of

Amneal Injectables Private Limited
(Transferor Company 1)

and

Puniska Healthcare Private Limited
(Transferor Company 2)

with

Amneal Pharmaceuticals Private Limited
(Transferee Company)

and

Their respective Shareholders and Creditors

In the matter of:

Amneal Injectables Pvt. Ltd.
(CIN: U24239GJ2020PTC116439)

A company incorporated under the provisions of Companies Act, 2013 and having its Registered Office at 9th Floor, 901 to 905, ISCON Elegance, Circle P, S.G. Highway, Ahmedabad-380015, Gujarat.

....Petitioner Company 1
(Transferor Company 1)

And

Puniska Healthcare Pvt. Ltd.
(CIN: U36999GJ2017PTC098441)

A company incorporated under the provisions of Companies Act, 2013 and having its Registered Office at 9th Floor, 901 to 905, ISCON Elegance, Circle P, S.G. Highway, Ahmedabad-380015,Gujarat.

....Petitioner Company 2
(Transferor Company 2)

With

Amneal Pharmaceuticals Pvt. Ltd.
(CIN: U24231GJ2006PTC048109)

A company incorporated under the provisions of Companies Act, 1956 and having registered office at 901-911, ISCON Elegance, Opp. Karnavati Club, S.G. Highway, Ahmedabad-380015,Gujarat.

....Petitioner Company 3
(Transferee Company)

Order delivered on 17.07.2023

Coram: Mr. Shammi Khan, Hon'ble Member(J)
Mr.Kaushalendra Kumar Singh, Hon'ble Member(T)

Appearance:

For the Petitioners	:	Mr. Dhinal Shah, Advocate along with Ravi Raj Singh Choudhary. Advocate
For the Regional Director	:	Mr. Liladhar Sharma, Asst. Director

O R D E R

1. The present joint Company Petition has been filed by the Petitioner Companies under Sections 230-232 of the Companies Act, 2013 read with companies (Compromise, Arrangement and Amalgamations) Rules, 2016 seeking approval of the Scheme of Arrangement of M/s. Amneal Injectables Pvt. Ltd. (Transferor Company 1), M/s. Puniska Healthcare Pvt. Ltd. (Transferor Company 2), with Amneal Pharmaceuticals Pvt. Ltd. (Transferee Company) with effect from 01.04.2022, being the Appointed Date as mentioned in the Scheme.

2. Affidavits in support of the above joint petition have been sworn by Mr. Rajeev Midha on behalf of the Petitioner Companies. He is the authorized representative of the Petitioner Companies. The said affidavits are annexed with the application. The above-named authorized representative for the Petitioner Companies has been authorized vide Board Resolution dated 12.09.2022 of the Petitioner Companies.

3. The Petitioner Companies had filed a joint Company Application before this Tribunal being CA (CAA) No. 57 of 2022, inter alia, sought dispensation of the meetings of the Equity Shareholders of the Transferor Companies (wholly owned subsidiaries of the Transferee Company) and the Equity Shareholders of the Transferee Company (wholly owned subsidiary of Amneal Singapore Pte Ltd.-a company incorporated under the laws of Singapore); further sought direction for

convening and holding meetings of the Unsecured Creditors of the Transferor Companies and the Transferee Company. Since there were no Secured Creditors in the Transferor Companies and the Transferee Company, Secured Creditors meetings were not required.

4. By an order dated 23.11.2022 passed in CA (CAA) No.57/NCLT/AHM/2022, this Tribunal directed to convene and hold meetings of the Unsecured Creditors of the Transferor Company No.1 on 21.01.2023 at 11.30 am, Unsecured Creditors of the Transferor Company No.2 on 21.01.2023 at 12.30 pm and the Unsecured Creditors of the Transferee Company on 21.01.2023 at 1.30 pm, for the purpose of considering and, if thought fit, approving the Scheme of Arrangement with or without modification (s). This Tribunal held that since there are no Secured Creditors in the Transferor Companies and the Transferee Company, the meetings of Secured Creditors of the Transferor Companies and the Transferee Company are not necessary.

5. This Tribunal appointed Mr. Darshan Pathak, Independent Practising Company Secretary as the Chairman of the aforesaid meetings and gave further directions to comply with various stipulations contained in the Order including filing of the Chairman's Report. This Tribunal also directed issuance of notices to the Statutory Authorities viz. the Central Government through the Regional Director, North Western Region, the Registrar of Companies, Income Tax Authorities, Official Liquidator (for the Transferor Companies).

6. In compliance of the order dated 23.11.2022 passed by this Tribunal in CA (CAA) No. 57 of 2022, the petitioner companies sent individually notices to statutory authorities as required by the order. The Petitioner Companies also filed affidavit of service of notice to the statutory authorities.

7. In compliance of the order dated 23.11.2022 passed by this Tribunal in CA (CAA) No. 57 of 2022, notice of the meetings was sent to the Unsecured Creditors of the Transferor Companies and the Transferee Company as required by the order together with a copy of the Scheme of Amalgamation and of the statement required by Section 230 of the Companies Act, 2013.

8. Apropos to the order dated 23.11.2022, the petitioner companies also published advertisement about convening of the meetings in English Daily 'Indian Express' and Gujarati translation thereof in 'Divya Bhaskar', both in Ahmedabad Edition on 16.12.2022. The Petitioner Companies filed affidavit of service of notice of meetings, publication of notice in the local dailies and affidavit regarding service of notice to the statutory authorities with this Tribunal on 16.01.2023.

9. Separate meetings of the Unsecured Creditors of the Petitioner Company were duly convened on 21.01.2023. The Chairman of the Meetings has filed respective reports on 09.02.2023.

10. As per the Chairman Report of meeting of Unsecured Creditors of the Petitioner Company No.1, has 7 (seven) Unsecured Creditors representing Rs.278,91,29,751.26 (Rupees Two Hundred Seventy Eight Crore Ninety One Lakh Twenty Nine Thousand Seven Hundred Fifty One and Paise Twenty Six) [97.32%] in value of debt of the Petitioner Company No.1 unanimously approved the Scheme of Amalgamation.

11. As per the Chairman Report of meeting of Unsecured Creditors of the Petitioner Company No.2, has 6 (six) Unsecured Creditors representing Rs.692,08,43,416.82 (Rupees Six Hundred Ninety Two Crore Eight Lakh Forty Three Thousand Four Hundred Sixteen and

Paise Eighty Two) [85.72%] in value of debt of the Petitioner Company No. 2 unanimously approved the Scheme of Amalgamation.

12. As per the Chairman Report of meeting of Unsecured Creditors of the Petitioner Company No.3, has 10 (Ten) Unsecured Creditors representing Rs.719,37,82,795.21 (Rupees Seven Hundred Nineteen Crore Thirty Seven Lakh Eighty Two Thousand Seven Hundred Ninety Five and Paise Twenty) [75.34%] in value of debt of the Transferee Company unanimously approved the Scheme of Amalgamation.

13. It is submitted that thus, all the stakeholders have unanimously approved the Scheme of Arrangement.

14. In response to the notice served upon the Regional Director (RD), a Representation dated 25.01.2023 was filed by the RD, North-Western Region, along with the report from the Registrar of Companies (RoC), on 29.03.2023. Their observations are as follows:-

i) To direct the Petitioner Companies to undertake the compliance of Section 232(3)(i) of the Companies Act, 2013 and to pay fees, accordingly.

ii) The petitioner companies to pay legal fees/expenses to the Central Government for submitting this report.

iii) Necessary Stamp Duty on transfer of property / Assets, if any, to be paid to the respective Authorities before implementation of the Scheme.

15. In response to the notice to the Official Liquidator (OL), the OL has filed separate reports on 11.04.2023, both dated 15.02.2023, with respect to the Transferor Companies. The OL has observed the following:-

i) To preserve its books of accounts, papers and records and not to dispose of the same without prior permission of the Central Government as per the provisions of Section 239 of the Companies Act, 2013.

ii) To ensure Statutory compliance of all applicable laws and also on sanctioning of the present Scheme, the Transferor Companies shall not be absolved from any of its statutory liabilities, in any manner.

iii) The Transferor Companies may be dissolved without following the process of winding-up in terms of sub-section 3(d) of Section 232 of the Companies Act, 2013. Further the Transferor Company being dissolved, the fee, if any, paid by the Transferor Company on its Authorized Share Capital shall be set-off against any fees payable by the Transferee Company on its Authorized Capital subsequent to the amalgamation in terms of sub section 3(i) of Section 232 of Companies Act, 2013.

iv) To pay such cost and expenses to the office of the official liquidator for the Transferor Company or any such amount as may be considered appropriate by this Bench.

v) To lodge a certified copy of order along with the Scheme, with the concerned superintendent of stamp duty for determination of stamp duty payable, if any.

16. In response to the notice of hearing served to the Income Tax Authority, the Income Tax Authority has submitted its report stating that there is no outstanding demand against the Transferor

Companies. As far as the Transferee Company is concerned, there is an outstanding demand of Rs.92,00,299/-.

17. The Petitioner Companies have filed separate affidavits on 20.04.2023 in response to the Representation of the Regional Director, North Western Region and the Representation of the Official Liquidator.

In response to the observation of the Regional Director, the Petitioner Companies stated that the Transferee Company undertakes to comply with the provisions of Section 232 (3) (i) of the Companies Act, 2013 and shall make the payment of the differential amount regarding fee and stamp duty, if payable upon enhanced authorised share capital upon the approval of the scheme of amalgamation by this Tribunal.

In response to the observation of the Official Liquidator, in respect of the Transferor Companies, it is stated that for differential fees, the Transferor Companies gave undertaking for compliance of Section 232(3)(i) of the Companies Act, 2013.

18. The Transferee Company has filed an affidavit dated 21.04.2023 in response to the Income Tax Department's report on 25.04.2023. In the aforesaid affidavit, it is stated that all pending demands under the Income Tax Act, subject to the applicable law and pending litigation / proceedings will be satisfied by the Applicant Companies.

19. The Petitioner Companies filed Company Petition being CP (CAA) No. 12/NCLT/AHM/2023 before this Tribunal seeking sanction of the Scheme (e-filed on 14.02.2023 and physical copy thereof was filed on 15.02.2023).

20. This Tribunal, by order dated 20.03.2023 admitted the aforesaid petition and directed issuance of notices to Regional Director, the Registrar of Companies, Income Tax Authority and the Official Liquidator informing the date of hearing. The Tribunal also directed publication of notice of hearing of the petition in the English Daily "Indian Express" and Gujarati Daily "Divya Bhaskar", both having circulation in Ahmedabad not less than 10 days before the date fixed for hearing, calling for objections, if any, on or before the date of hearing.

21. Pursuant to the order dated 20.03.2023 passed by the Tribunal, the petitioner companies published the notice of hearing of the petition in the English Daily "Indian Express" and Gujarati Daily "Divya Bhaskas" both having circulation in Ahmedabad on 25.03.2023. The notice in respect of hearing of the Company Petition was served upon all concerned statutory authorities. Affidavit to that effect is also filed on by the petitioner companies on this Tribunal on 18.04.2023.

22. Pursuant to the order dated 20.03.2023 and issuance of notices to the statutory authorities and publication of the notice in the local dailies, no representation is received.

23. It is submitted that no winding up proceedings have been filed or are pending against the petitioner companies under the Companies Act, 2013 or under the corresponding provisions of the Companies Act, 1956.

24. It is submitted that the Statutory Auditor of the Petitioner Companies has certified that the Accounting Treatment of the Scheme is in conformity with the Accounting Standards prescribed under

Section 133 of the Companies Act, 2013. A copy of the certificate issued by the statutory auditor is produced on record.

25. Copies of the latest audited financial statements of the Petitioner Companies as on 31.03.2022 are enclosed with the Application as Annexure-A, Annexure-B and Annexure-C.

26. The Petitioner Companies have stated in the Petition that no inspection or investigation has been instituted or is pending against any of the petitioner companies under the provisions of the Companies Act, 2013. It was also stated that if there is any deficiency found, or violation committed of any enactment, statutory rules or regulations, the sanction granted by the Tribunal to the scheme will not come in the way of action being taken in accordance with law, against the concerned persons, directors and officials of the petitioner companies.

27. We have heard Mr. Dhinal Shah Ld. Counsel for the Petitioner Companies and also gone through the records.

28. On the basis of above facts and submissions made by the Learned Counsel and by considering the entire facts and circumstances of the aforesaid company petition and on perusal of the Scheme and the proceedings, it appears that the requirements of the provisions of section 230 and 232 are satisfied by the petitioner companies. We are of the considered view that the proposed Scheme of Arrangement is bona fide and in the interest of the shareholders and creditors. In the result, Company Petition No. CP (CAA) No. 12 of 2023 is allowed. The Scheme envisages amalgamation of Amneal Injectables Private Limited (Transferor Company No. 1), and Puniska Healthcare Private Limited (Transferor Company No. 2) with Amneal Pharmaceuticals Private Limited (Transferee Company). It is declared that the said sanctioned

scheme shall be binding on the petitioner companies and their shareholders, creditors and all concerned under the scheme.

29. Notwithstanding the above, if there is any deficiency found or, violation committed qua any enactment, statutory rule or regulation, the sanction granted by this Tribunal to the scheme will not come in the way of action being taken, albeit, in accordance with law, against the concerned persons, directors and officials of the petitioners.

30. While approving the Scheme as above, we further clarify that this order should not be construed as an order in granting any exemption from payment of stamp duty, taxes including income tax, GST, etc. or any other charges, if any, and payment in accordance with law or in respect of any permission/compliance with any other requirement which may be specifically required under any law. It is further clarified that Income Tax Department will be free to examine the aspect of any tax payable as a result of the sanction of the Scheme and sanction of the Scheme of arrangement given hereunder shall not adversely affect the rights of Income Tax Department on any past, present or future proceedings.

31. This Tribunal orders as under:-

(i) The Scheme of Arrangement as annexed herewith as **"Annexure A"** is hereby sanctioned and it is declared that the same shall be binding on the Petitioner Companies and their Shareholders and Creditors and all concerned under the Scheme.

(ii) It is declared that the Transferor Companies shall be dissolved without winding up.

(iii) All the property annexed herewith as **"Annexure B"**, right and powers of the Transferor Companies specified in the schedule hereto and all the other property, rights and powers of the Transferor Companies be transferred without further act or deed to the Transferee Company and accordingly the same shall pursuant to Section 232 of the Act, be transferred to and vested in the Transferee Company for all the estates and interest of the Transferor Companies therein.

(iv) All proceedings, if any, now pending against the Transferor Companies be continued by or against the Transferee Company.

(v) All workers / employees of all the Transferor Companies shall be deemed to become the workers /employees of the Transferee Company with effect from the Appointed Date, and shall stand absorbed in the Transferee Company in accordance with the Scheme without any interruption of service and on terms and conditions no less favourable than those on which they are engaged by the Transferor Companies, as on the Effective Date.

(vi) The Petitioner Companies within thirty days of the date of receipt of this order, cause a certified copy of this order to be delivered to the Registrar of Companies for registration and on such certified copy being so delivered, the entire Undertaking of the Transferor Companies shall stand transferred to the Transferee Company and the Registrar of Companies shall place all documents relating to the Transferor Companies to the file kept by him in relation to the Transferee Company and the files relating to the said companies shall be treated accordingly.

(vii) Consideration / Issue of Shares

The entire issued, subscribed and paid-up share capital of Transferor Company No. 1 and Transferor Company No. 2 are held by Transferee Company. Upon the Scheme becoming effective, no shares of Transferee Company shall be allotted to the Equity Shareholders of Transferor Company No. 1 and Transferor No. 2 as both the Transferor Companies are wholly owned subsidiaries of Transferee Company.

(viii) Upon the scheme becoming effective, Clause V of the Memorandum of Association of the Transferee Company shall respectively stand substituted by virtue of the Scheme to read as follows:

"Clause V of the Memorandum of Association of the Transferee Company:

The Authorised Share Capital of the Company is Rs. 6,01,00,00,000/- (Rupees Six hundred One crore only) divided into 60,10,00,000/- (Sixty crores Ten lacs) Equity shares of Rs. 10/-(Rupees Ten Only) and Rs. 39,00,00,000/-(Rupees Thirty Nine Crore only) divided into 3,90,00,000 Three Crores Ninety Lacs) Preference shares of Rs. 10/-(Rupees Ten only)."

(ix) All concerned Authorities to act on copy of this order along with the Scheme authenticated by the Registrar of this Tribunal shall issue the certified copy of this order along with the Scheme.

(x) The Petitioner Companies are directed to lodge a copy of this Order and the approved Scheme and Schedule of

Assets attached as Annexure-B with this order, duly authenticated by the Registrar of this Tribunal, with the concerned Superintendent of Stamps, for the purpose of adjudication of stamp duty, if any, within 60 days from the date of the Order.

(xi) The Petitioner Companies are further directed to file a copy of this order along with the copy of the Scheme with the concerned the Registrar of Companies, electronically, along with e-form INC-28 in addition to physical copy within 30 days from the date of issuance of the certified copy of the Order by the Registry as per relevant provisions of the Act.

(xii) The legal fees and expenses of the office of the Regional Director are quantified at Rs.10,000/- in respect of each of the Petitioner Companies. The said fees to the Regional Director shall be paid by the Transferee Company.

(xiii) The legal fees and expenses of the office of the Official Liquidator are quantified at Rs.10,000/- in respect of each of the Transferor Companies. The said fees of the Official Liquidator shall be paid by the Transferee Company.

(xiv) Filing and issuance of drawn up orders are dispensed with. All concerned authorities to act on a copy of this order along with the Scheme duly authenticated by the Registrar of this Tribunal. The Registrar of this Tribunal shall issue the authenticated copy of this order alongwith Scheme immediately.

(xv) The Income Tax Department will be free to examine the aspect of any tax payable as a result of the sanction of the

Scheme and if it is found that the Scheme of Arrangement ultimately results in tax avoidance or is not in accordance with the applicable provisions of Income Tax Act, then the Income Tax Dept. shall be at liberty to initiate appropriate course of action as per law. Any sanction of the Scheme of Arrangement under Sections 230-232 of the Companies Act, 2013 shall not adversely affect the rights of Income Tax Department or any past, present or future proceedings and the sanction of the scheme shall not come in its way for the appropriate course of action as per law for the tax liabilities, if any.

(xvi) Any person aggrieved shall be at liberty to apply to the Tribunal in the above matter for any direction that may be necessary.

32. The Company Petition CP (CAA) No. 12 of 2023 connected with CA (CAA) No. 57 of 2022 is disposed of.

-SD- -SD-

KAUSHALENDRA KUMAR SINGH
MEMBER (TECHNICAL)

SHAMMI KHAN
MEMBER (JUDICIAL)

Sudha-Steno

Annexure "A" 204.
ANNEXURE-D

SCHEME OF ARRANGEMENT

BETWEEN

AMNEAL INJECTABLES PRIVATE LIMITED

(TRANSFEROR COMPANY No. 1/ APPLICANT COMPANY No. 1)

AND

PUNISKA HEALTHCARE PRIVATE LIMITED

(TRANSFEROR COMPANY No. 2/ APPLICANT COMPANY No. 2)

AND

AMNEAL PHARMACEUTICALS PRIVATE LIMITED

(TRANSFEREE COMPANY)

AND

THEIR RESPECTIVE SHAREHOLDERS AND CREDITORS

UNDER SECTIONS 230 TO 232 AND OTHER APPLICABLE PROVISONS OF THE COMPANIES ACT, 2013 AND RULES FRAMED THEREUNDER

A. PREAMBLE

This Scheme of Arrangement ("Scheme") is presented under Sections 230 to 232 and other applicable provisions of the Companies Act, 2013 and the rules and regulations made thereunder, for amalgamation of Amneal Injectables Private Limited ("AIPL" or "the Transferor Company No. 1" or "Applicant Company No. 1) and Puniska Healthcare Private Limited ("PHPL" or "the Transferor Company No. 2" or "Applicant Company No. 2") with Amneal

Amneal Injectables Private Limited
Director/Authorised Signatory

PUNISKA HEALTHCARE PVT. LTD.
DIRECTOR

For, Amneal Pharmaceuticals Pvt. Ltd.
Director

Pharmaceuticals Private Limited ("APPL" or "Transferee Company)". This scheme also provides for various other matters consequential to amalgamation or otherwise integrally connected herewith.

B. DESCRIPTION OF COMPANIES

I. **AMNEAL INJECTABLES PRIVATE LIMITED ("AIPL" or "the Transferor Company No. 1" or Applicant Company No. 1)** is a private company incorporated under the provisions of Companies Act, 2013 bearing Corporate Identification Number: U24239GJ2020PTC116439, having its Registered Office at 9th Floor, 901 To 905, ISCON Elegance, Circle P, S.G. Highway, Ahmedabad, Gujarat, India, 380015. The Transferor Company No. 1 is primarily engaged in the business of carrying out scientific research, development & manufacturing & selling of injectable and oral solid dosage of pharmaceutical products.

II. **PUNISKA HEALTHCARE PRIVATE LIMITED ("PHPL" or "the Transferee Company No. 2" or "Applicant Company No. 2")** is a private company incorporated under the Companies Act, 2013, bearing Corporate Identification Number U36999GJ2017PTC098441 and having its Registered Office at 9th Floor, 901 To 905, ISCON Elegance, Circle P, S.G. Highway, Ahmedabad, Gujarat, India, 380015. The Transferor Company No. 2 is inter alia in the business of Manufacturing, producing, formulating and Selling of Pharmaceutical and injectable Products.

III. **AMNEAL PHARMACEUTICALS PRIVATE LIMITED ("APPL" or "Transferee Company")** incorporated under the Companies Act, 1956, bearing Corporate Identification Number U24231GJ2006PTC048109 and having its registered office at 901-911, ISCON Elegance, Opp. Karnavati Club, S.G. Highway, Ahmedabad, Gujarat, India, 380015. The Transferee Company is inter alia engaged in the Business of Research and Development and Manufacturing and Selling Pharmaceutical Products.

C. OBJECTIVES AND RATIONALE OF THE SCHEME

I. As a part of the business consolidation strategy of Transferee Company, it is

desired to merge its wholly owned subsidiary Amneal Injectables Private Limited and Puniska Healthcare Private Limited with itself. The amalgamation of AIPL and PHPL with APPL would inter alia have the following benefits:

- Consolidation of business and operations;
- Streamlining the current organization structures;
- Reduction in multiplicity of legal and regulatory compliances, reduction in overheads including administrative, managerial and other expenditures;
- Greater scale of economy and greater financial strength and flexibility;
- The combination of both the businesses would increase long term value for all the stakeholders; and optimum use of capital resources and increased bargaining powers;

II. The Scheme would be in the interest of the Transferor Companies and the Transferee Company, and their respective shareholders, creditors, if any, and other stakeholders and will not be prejudicial to the interest of any concerned shareholders or creditors.

D. <u>PARTS OF THE SCHEME</u>

This Scheme of Arrangement is divided into the following parts:

- **PART I** of the Scheme deals with the Definitions and Interpretations, and also sets out the share capital of all companies which are parties to the Scheme;
- **PART II** of the Scheme deals with amalgamation of the Transferor Companies with the Transferee Company; and
- **PART III** deals with general terms and conditions applicable to this Scheme.

E. The arrangement under this Scheme will be effected under the provisions of Sections 230 to 232 and other applicable provisions of the Companies Act,

For PUNISKA HEALTHCARE PVT. LTD.

Director/Authorised Signatory

DIRECTOR

Director

2013.

PART I

DEFINITIONS AND INTERPRETATIONS

1. DEFINITIONS

In this Scheme, unless repugnant to the subject or context or meaning thereof, the following expressions shall have the meanings as set out herein below:

i. "**Act**" means the Companies Act, 2013 and the Companies Act, 1956, to the extent of its provisions in force, and rules made thereunder, including any statutory modifications, re-enactments or amendments thereof for the time being in force as the case may be.

ii. "**Appointed Date**" means 1st April, 2022.

iii. "**Applicable Law**" means any applicable statute, law, regulation, ordinance, rule, judgment, order, decree, clearance, approval, directive, guideline, requirement or any similar form of determination by or decision of any Appropriate Authority, that is binding or applicable to a Person, whether in effect as of the date of on which this Scheme has been approved by the Boards of Directors of the Companies or at any time thereafter;

iv. **"Board of Directors" or "Board"** means the Board of Directors of the Transferor Companies or the Transferee Company as the case may be.

v. "**Effective Date**" or "**coming into effect of this Scheme**" or "**upon the scheme becoming effective**" or "**effectiveness of the scheme**" means the last date on which the certified copies of the orders of National Company Law Tribunal sanctioning this Scheme, is filed by AIPL, PHPL and APPL with the jurisdictional Registrar of Companies;

vi. "**Governmental Authority**" or "**Appropriate Authority**" means any applicable central, state or local government, legislative body, regulatory or administrative authority, agency or commission or any court, tribunal, board, bureau, instrumentality, judicial or arbitral body having jurisdiction over the territory

Amneal Injectables Private Limited
Director/Authorised Signatory

PUNISKA HEALTHCARE PVT. LTD.
DIRECTOR

For, Amneal Pharmaceuticals Pvt. Ltd.
Director

of India.

vii. "**Income Tax Act**" means the Income Tax Act, 1961, including any amendments made therein or statutory modifications or re-enactments thereof for the time being in force.

viii. "**National Company Law Tribunal**" or **"NCLT"** or **"Tribunal"** means National Company Law Tribunal, Ahmedabad bench having jurisdiction over the Transferor Companies and the Transferee Company as constituted by the Central Government under the Act for approving any scheme of arrangement, compromise or reconstruction of companies under sections 230 to 232 of the Companies Act, 2013, and shall include, if applicable, such other forum or authority as may be vested with the powers of a Tribunal for the purposes of Sections 230 to 232 read with of the Companies Act, 2013.

ix. "**Registrar of Companies**" means the Registrar of Companies, at Ahmedabad having jurisdiction over the Companies.

x. "**Scheme**" means this Scheme of Arrangement between Amneal Injectables Private Limited ("AIPL" or "Transferor Company No. 1" or "Applicant Company No. 1"), Puniska Healthcare Private Limited ("PHPL" or "Transferor Company No.2" or "Applicant Company No. 2") and Amneal Pharmaceuticals Private Limited ("APPL" or "Transferee Company"), in its present form and / or with any modifications and amendments thereto made under Clause 17 of this scheme as approved or directed by the Tribunal.

xi. **"Transferee Company"** or **"APPL"** means Amneal Pharmaceuticals Private Limited, a private company incorporated under the provisions of Companies Act, 1956 bearing Corporate Identification Number: U24231GJ2006PTC048109 and having its registered office at 901-911, ISCON Elegance Opp. Karnavati Club, S.G. Highway, Ahmedabad, Gujarat, India, 380015.

xii. "**Transferor Company No. 1**" or "**AIPL**" or **"Applicant Company No. 1"** means Amneal Injectables Private Limited, a private company incorporated under the provisions of Companies Act, 2013 bearing Corporate Identification Number:

Amneal Injectables Private Limited PUNISKA HEALTHCARE PVT. LTD. For, Amneal Pharmaceuticals Pvt. Ltd.

DIRECTOR Director

U24239GJ2020PTC116439, having its Registered Office at 9th Floor, 901 To 905, ISCON Elegance, Circle P , S.G. Highway, Ahmedabad, Gujarat, India, 380015.

xiii. **"Transferor Company No. 2"** or **"PHPL"** or **"Applicant Company No. 2"** means Puniska Healthcare Private Limited, a private company incorporated under the Companies Act, 2013, bearing Corporate Identification Number U36999GJ2017PTC098441 and having its Registered Office at 9th Floor, 901 To 905, ISCON Elegance, Circle P , S.G. Highway, Ahmedabad, Gujarat, India, 380015.

2. INTERPRETATIONS

All terms and words not defined in this Scheme shall, unless repugnant or contrary to the context or meaning thereof, have the same meaning ascribed to them under the Companies Act and other applicable laws, rules, regulations, bye-laws, as the case may be or any statutory modification or re-enactment thereof from time to time.

In this Scheme, unless the context otherwise requires:

i. The words "including", "include" or "includes" shall be interpreted in a manner as though the words "without limitation" immediately followed the same;

ii. Any document or agreement includes a reference to that document or agreement as varied, amended, supplemented, substituted, novated or assigned, from time to time, in accordance with the provisions of such document or agreement;

iii. The words "other", "or otherwise" and "whatsoever" shall not be construed *ejusdem generis* or be construed as any limitation upon the generality of any preceding words or matters specifically referred to;

iv. The headings are inserted for ease of reference only and shall not affect the construction or interpretation of the relevant provisions of the Scheme;

v. The term "clause" or "sub-clause" refers to the specified clause of this Scheme,

PUNISKA HEALTHCARE PVT. LTD.

DIRECTOR

For, Anneal Pharmaceuticals Pvt. Ltd.

Director

Anneal Pharmaceuticals Private Limited

Director/Authorised Signatory

as the case may be;

vi. Reference to any legislation, statute, regulation, rule, notification or any other provision of law means and includes references to such legal provisions as amended, supplemented or re-enacted from time to time, and any reference to legislation or statute includes any subordinate legislation made from time to time under such a legislation or statute and regulations, rules, notifications or circulars issued under such a legislation or statute;

vii. Words in the singular shall include the plural and vice versa.

3. DATE OF TAKING EFFECT AND OPERATIVE DATE

This Scheme set out herein in its present form or with any modification(s) and amendment(s) made under clause 17 of this Scheme duly approved or imposed or directed by the Tribunal shall be effective from the Appointed Date but shall become operative upon coming into effect of this Scheme.

4. SHARE CAPITAL

i. The share capital of Transferor Company No. 1 as per unaudited Financial Statements as on 31st day of March, 2022 is as under:

Particulars	**Amount (Rs.)**
Authorized capital	
Equity Shares: 1, 00, 00, 000 Equity Shares of Rs. 10/- each	10, 00, 00, 000/-
Total	**10, 00, 00, 000/-**
Issued, subscribed and fully paid-up capital	
Equity Shares:	

NATIONAL COMPANY LAW TRIBUNAL AHMEDABAD

For, Ammeal Pharmaceuticals Pvt. Ltd.
Director
PUNISKA HEALTHCARE PVT. LTD.
DIRECTOR
Director/Authorised Signatory

40, 00, 000 Equity Shares of Rs. 10/- each	4, 00, 00, 000/-
Total	**4, 00, 00, 000/-**

Subsequent to 31st day of March, 2022 and as on the date of approval of the Scheme by the Board of Directors of the Transferor Company No. 1, there is no change in the authorized, issued, subscribed and paid-up share capital of the Transferor Company No. 1.

ii. The share capital of the Transferor Company No. 2 as per unaudited Financial Statements as on 31st day of March, 2022 is as under:

Particulars	**Amount (Rs.)**
Authorised capital	
1, 10, 00, 000 Equity Shares of Rs.10/- each	**11, 00, 00, 000/-**
3,90,00,000 Preference Share of Rs. 10 Each	**39, 00, 00, 000/-**
Total	**50, 00, 00, 000/-**
Issued, subscribed and fully paid-up Capital	
1,00,10,000 Equity Shares of Rs.10/- each	**10,01,00,000/-**
Total	**10,01,00,000/-**

Subsequent to 31st day of March, 2022 and as on the date of approval of the Scheme by the Board of Directors of the Transferor Company No. 2, there is no change in the authorized, issued, subscribed and paid-up share capital of the Transferor Company No. 2.

For, Amneal Pharmaceuticals Pvt. Ltd.

Amneal Injectables Private Limited

Director/Authorised Signatory

PUNISKA HEALTHCARE PVT. LTD.

DIRECTOR

Director

iii. The Share capital of the Transferee Company as per unaudited Financial Statements as on 31st day of March, 2022 is as under:

Particulars	Amount (Rs.)
Authorised capital	
58,00,00,000 Equity Shares of Rs.10/- each	**5,80,00,00,000/-**
Total	**5,80,00,00,000/-**
Issued, subscribed and fully paid-up Capital	
36,27,73,487 Equity Shares of Rs.10/- each	**3,62,77,34,870/-**
Total	**3,62,77,34,870/-**

Subsequent to 31st day of March, 2022 and as on the date of approval of the Scheme by the Board of Directors of the Transferee Company, there is a change in the authorized, issued, subscribed and paid-up share capital of the Transferee Company.

PART II

AMALGAMATION OF THE TRANSFEROR COMPANY NO. 1, TRANSFEROR COMPANY NO. 2 WITH THE TRANSFEREE COMPANY AND OTHER RELATED MATTERS

5. TRANSFER AND VESTING OF UNDERTAKING

Subject to the provisions of this Scheme as specified hereinafter and upon the Scheme becoming Effective, with effect from the Appointed Date:

For, Amneal Pharmaceuticals Pvt. Ltd.

Director/Authorised Signatory

DIRECTOR

Director

i. The entire business and the undertaking of the Transferor Company No. 1 and Transferor Company No. 2 including all their properties and assets, (whether movable or immovable, tangible or intangible), land and building, leasehold assets and other properties, in possession or reversion, present and contingent assets (whether tangible or intangible) of whatsoever nature, all the receivables, advances, deposits etc. and assets of the Transferor Company No. 1 and Transferor Company No. 2 comprising amongst others all plant and machinery, investments, and business licenses, or any other permits, authorizations, if any, rights and benefits of all agreements and all other interests, rights and powers of every kind, nature and description whatsoever, privileges, liberties, easements, advantages, benefits and approvals, advance and other taxes paid to the authorities, copy rights, lease, tenancy rights, statutory permissions, consents and registrations or approvals obtained from any authorities including but not limited to approval from any District Industries centre, Industrial Development Corporation, Chief Fire Officer, Environment Clearance Certificate, Pollution control board, Power development department, Title Clearance Certificate issued by any Competent Authority, all rights and /or titles and /or interest in properties by virtue of any court decree or order, all records, files, papers, contracts, permits, authorizations, if any, rights and benefits of all agreements, subsidies, grants, concessions and all other interests, rights and powers of every kind, nature and description whatsoever, privileges, liberties, easements, advantages, benefits and approvals, advance and other taxes paid to the authorities, brand names, trademarks, copy rights, lease, tenancy rights, statutory permissions, consents and registrations, all rights or titles or interest in properties by virtue of any court decree or order, all records, files, papers, contracts, licenses, power of attorney, lease, tenancy rights, letter of intents, permissions, benefits under income tax and indirect tax (including but not limited to benefits of tax relief under Income Tax Act, 1961 such as credit for advance tax, tax deducted at source, unutilized deposits or credits, minimum alternate tax, etc., credit, incentives, benefits for excise duty, service tax, sales tax/value added tax/goods and service tax and/or any other statues, incentives under indirect

taxes, Department of Industrial Policy and Promotion (DIPP), Ministry of Commerce & Industry etc., if any, the brought forward losses and unabsorbed depreciation as per the books of accounts and the tax losses and unabsorbed depreciation under the provisions of Income Tax Act, 1961) and all other rights, title, interest, contracts, consent, approvals or powers of every kind and description, agreements shall, pursuant to the order of Hon'ble NCLT and pursuant to provisions of Sections 230 to 232 of the Companies Act, 2013 and other applicable provisions of the Act and without further act, instrument or deed, but subject to the charges affecting the same shall stand transferred to and vested in or deemed to be transferred to and vested in the Transferee Company on a going concern basis so as to become the assets of the Transferee Company with all rights, title, interest or obligations of the Transferor Company No. 1 and Transferor Company No. 2 therein.

ii. In respect of all the movable assets of the Transferor Company No. 1 and Transferor Company No. 2 and the assets which are otherwise capable of transfer by physical delivery or endorsement and delivery, including cash on hand, shall be so transferred to the Transferee Company and deemed to have been physically handed over by physical delivery or by constructive delivery, as the case may be, to the Transferee Company to the end and intent that the property and benefit therein passes to the Transferee Company.

iii. In respect of any assets of the Transferor Company No. 1 and Transferor Company No. 2 other than those mentioned above, including actionable claims, sundry debtors, outstanding loans, advances recoverable in cash or kind, bank balances and deposits including deposits paid in relation to outstanding litigations, if any with Government, semi-Government, local and other authorities, customers and other persons, shall, without any further act, instrument or deed, be transferred to and vested into as the property of the Transferee Company. The Transferee Company, may issue notices in such form as the Transferee Company deems fit and proper stating that pursuant to the Hon'ble NCLT having sanctioned this Scheme between the Transferor Company No. 1, Transferor Company No. 2 and the Transferee Company under Sections 230 to 232 of the Companies Act, 2013, the relevant debt, loan,

advance or other asset, be paid or made good or held on account of the Transferee Company, as the person entitled thereto, to the end and intent that the right of the Transferor Company No. 1 and Transferor Company No. 2 to recover or realize the same stands transferred to the Transferee Company and that appropriate entries should be passed in their respective books to record the aforesaid changes.

iv. All the assets, investments and properties which are acquired by the Transferor Company No. 1 and Transferor Company No. 2 on or after the Appointed Date shall be deemed to be and shall become the assets and properties of the Transferee Company and shall under the provisions of Sections 230 to 232 and all other applicable provisions if any of the Act, without any further act or execution of any instrument or deed, be and stand transferred to and vested in and be deemed to have been transferred to and vested in the Transferee Company upon the coming into effect of this Scheme pursuant to the provisions of Sections 230 to 232 of the Act.

v. All consents, licenses, permits, entitlements, quotas, approvals, permissions, registrations, incentives, schemes, policies, tax deferrals, exemptions and benefits (including goods and services tax), subsidies, refunds, concessions, grants, rights, claims, leases, tenancy rights, liberties, special status and other benefits or privileges enjoyed or conferred upon or held or availed of by the Transferor Company No. 1 and Transferor Company No. 2 and all rights and benefits that have accrued or which may accrue to the Transferor Companies, with effect from the Appointed Date including income tax and other tax benefits and exemptions shall, under the provisions of Section 230 to Section 232 and other applicable provisions of the Act shall, without any act, instrument or deed stand transferred to and vest in and be available to the Transferee Company so as to become the consents, licenses, permits, entitlements, quotas, approvals, permissions, registrations, incentives, schemes, policies, tax deferrals, exemptions and benefits (including goods and service tax), subsidies, refunds, concessions, grants, rights, claims, leases, tenancy rights, liberties, special status and other benefits or privileges of the Transferee Company and shall be in full force be valid effective and enforceable in favor of,

PUNISKA HEALTHCARE PVT. LTD.

DIRECTOR

For, Amneal Pharmaceuticals Pvt. Ltd.

Director

Director/Authorised Signatory

the Transferee Company and may be enforced as fully and effectually as if instead of the Transferor Company No. 1 and Transferor Company No. 2, the Transferee Company had been the party thereto or the beneficiary or oblige thereof pursuant to this Scheme.

vi. The Transferee Company will be entitled to all the trade and service names and marks, brands, patents, copyrights, licenses, marketing authorizations, approvals and marketing tangibles of the Transferor Company No. 1 and Transferor Company No. 2 including registered and unregistered trademarks along with all rights of commercial nature including those attached to goodwill, title, interest, labels and brands registrations, copyrights, trademarks and all such other industrial or intellectual rights of whatsoever nature.

vii. All debts, liabilities, contingent liabilities, duties and obligations of the Transferor Company No. 1 and Transferor Company No. 2, whether provided for or not in the books of accounts of the Transferor Companies, and all other liabilities which may accrue or arise after the Appointed Date but which relates to the period on or up to the day of the Appointed Date shall, pursuant to the Orders of the Hon'ble NCLT or such other competent authority as may be applicable under Sections 230 to 232 and other applicable provisions of the Companies Act, 2013 without any further act or deed, be transferred or deemed to be transferred to and vested in the Transferee Company, so as to become as from the Appointed Date the debts, liabilities, contingent liabilities, duties and obligations of the Transferee Company on the same terms and conditions as were applicable to the Transferor Companies.

viii. Where any of the debt, liabilities (including contingent liabilities), duties and obligations of the Transferor Company No. 1 and Transferor Company No. 2 as on the Appointed Date, deemed to be transferred to the Transferee Company has been discharged by the respective Transferor Company or Transferor Companies, after the Appointed Date, such discharge shall be deemed to have been for and on account of the Transferee Company.

ix. Without prejudice to the provisions of the foregoing Clauses and upon the Scheme becoming effective, the Transferor Company No. 1, Transferor

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DIRECTOR

Director

Director/Authorised Signatory

Company No. 2 and the Transferee Company shall execute all such instruments or documents or do all the acts and deeds as may be required, including the filing of necessary particulars and/or modification(s) of charge, with the jurisdictional Registrar of Companies to give formal effect to the above provisions, if required.

x. Upon the Scheme being sanctioned and taking effect, the Transferee Company shall be entitled to operate all bank accounts (including demat accounts) related to the Transferor Companies and all cheques, drafts, pay orders, instruction slips, direct and indirect tax balances and/or payment advices of any kind or description issued in favor of the Transferor Companies, either before or after the Appointed Date, or in future, may be deposited with the bank / depository participant of the Transferee Company and credit of all receipts thereunder will be given in the accounts of the Transferee Company.

xi. All taxes of any nature, duties, cess or any other like payments or deductions made by the Transferor Company No. 1 and Transferor Company No. 2 to any statutory authorities such as Income Tax, Minimum Alternate Tax, tax on distributed profits (i.e. Dividend Distribution Tax),tax on distributed income (i.e. Buy-back Tax), Equalisation Levy, Goods and Services Tax etc. or any tax deduction/collection at source, relating to the period after the Appointed Date and up to the Effective Date shall be deemed to have been on account of and on behalf of the Transferee Company and the relevant authorities shall be bound to transfer to the account of and give credit for the same to the Transferee Company upon the coming into effect of this Scheme and upon relevant proof and documents being provided to the said authorities.

xii. The Transferee Company shall be entitled to avail various benefits under industrial development incentive schemes and policies of the Government that were being availed or were available to the Transferor Companies. It is declared that pursuant to this Scheme, all the benefits under such incentive schemes and policies shall stand transferred and vested to the Transferee Company.

6. CONTRACTS, DEEDS AND OTHER INSTRUMENTS

Anneal Injectables Private Limited

PUNISKA HEALTHCARE PVT. LTD.

DIRECTOR

Director

i. Upon the coming into effect of this Scheme and with effect from Appointed Date and subject to the other provisions contained in this Scheme, all contracts, deeds, bonds, agreements, arrangements, assurances and other instruments of whatsoever nature to which the Transferor Company No. 1 and Transferor Company No. 2 are a party or to the benefit of which the Transferor Companies may be eligible, and which are subsisting or having effect immediately before the Effective Date shall be in full force and effect against or in favor of Transferee Company and may be enforced as fully and effectually as if instead of the Transferor Company No. 1 and Transferor Company No. 2, Transferee Company had been the party thereof.

ii. The Transferee Company shall, if so required or become necessary, enter into and / or issue and / or execute deeds, writings or confirmation in order to give formal effect to the provisions of this Scheme. Further, the Transferee Company shall be deemed to be authorized to execute any such deeds, writings or confirmations on behalf of the Transferor Company No. 1 and Transferor Company No. 2 and to implement or carry out all formalities required on the part of the Transferor Companies to give effect to the provisions of this Scheme.

iii. Upon the effectiveness of this Scheme, the resolutions of the Transferor Company No. 1 and Transferor Company No. 2, as are considered necessary by the Board of the Transferee Company, and that are valid and subsisting on the Effective Date, shall continue to be valid and subsisting and be considered as resolutions of the Transferee Company, and if any such resolutions have any monetary limits approved under the provisions of the Act, or any other applicable statutory provisions, then said limits as are considered necessary by the Board of the Transferee Company shall be added to the limits, if any, under like resolutions passed by the Transferee Company and shall constitute the aggregate of the said limits in the Transferee Company.

7. STAFF, WORKMEN & EMPLOYEES

i. On the Scheme becoming effective, staff and employees, if any of Transferor Company No. 1 and Transferor Company No. 2 in service on the Effective Date, shall be deemed to have become staff and employees of Transferee Company without any break or interruption in their service and on the terms and conditions of their employment not less favorable than those subsisting.

ii. It is expressly provided that, upon the Scheme becoming effective, the Provident Fund, Gratuity Fund, Pension Fund, Superannuation Fund or any other Special Fund or Trusts (hereinafter referred to as Fund or Funds) created or existing for the benefit of the staff, workmen and employees of Transferor Companies, if any, shall become trusts/funds of Transferee Company for all purposes whatsoever in relation to the administration or operation of such Fund or Funds or in relation to obligation to make contributions to the said Fund or Funds in accordance with the provisions thereof as per the terms provided in the respective Trust Deeds, if any, to the end and intent that all rights, duties, powers and obligations of Transferor Company No. 1 and Transferor Company No. 2 in relation to such Fund or Funds shall become those of Transferee Company. It is clarified that the services of the staff and employees of Transferor Companies will be treated as having been continuous for the purpose of the said Fund or Funds.

iii. In relation to those Employees for whom the Transferor Company No.1 and Transferor Company No. 2 is making contributions to the government provident fund, Employee State Insurance Corporation ("ESIC") or such other funds, the Transferee Company shall stand substituted for the Transferor Companies for all purposes whatsoever, including relating to the obligation to make contributions to the said fund in accordance with the provisions of such fund, such that all the rights, duties, powers and obligations of the Transferor Companies in relation to such provident fund trust shall become those of the Transferee Company.

iv. In relation to any other fund, created or existing for the benefit of the employees engaged of the Transferor Company No. 1 and Transferor Company No. 2, the

Amneal Pharmaceuticals Private Limited
Director/Authorised Signatory

PUNISKA HEALTHCARE PVT. LTD.
DIRECTOR

For, Amneal Pharmaceuticals Pvt. Ltd.
Director

Transferee Company shall stand substituted for all purposes whatsoever, including those relating to the obligation to make contributions to the said funds in accordance with the provisions of such scheme, funds, bye laws, etc. in respect of such employees.

v. The Transferee Company agrees that, for the purpose of payment of any retrenchment compensation, gratuity and other terminal benefits, the past services of such employees of the Transferor Companies shall also be taken into account, and agrees and undertakes to pay the same as and when payable under applicable law.

8. LEGAL PROCEEDINGS

i. If any suit, appeal or other legal proceedings of whatever nature is pending by or against Transferor Company No. 1 and Transferor Company No. 2 on or before the Effective Date, the same shall not abate or be discontinued or be in any way prejudicially affected by reason of the amalgamation or by anything contained in this Scheme, but the said suit, appeal or other legal proceedings shall be continued, prosecuted and enforced by or against Transferee Company in the same manner and to the same extent as it would or might have been continued, prosecuted and enforced by or against Transferor Companies, as if this Scheme had not been made.

ii. On and from the Effective Date, Transferee Company shall and may, if required, initiate any legal proceedings in relation to the Transferor Company No. 1 and Transferor Company No. 2 in the same manner and to the same extent as would or might have been initiated by the Transferor Company.

9. TAXES

i. Any liabilities including all liabilities under the Income Tax Act, 1961, The Integrated Goods and Services Tax Act, 2017, The Central Goods and Services Tax Act, 2017, Gujarat Goods and Services Tax Act, 2017 and any other state Goods and Services Tax Act, 2017,Stamp Laws or other applicable laws/ regulations (hereinafter covered in this Clause referred to as "Tax Laws") dealing with taxes/ duties/ levies allocable or related to the

business of the Transferor Company No.1 and Transferor Company No. 2 to the extent not provided for or covered by tax provision in the accounts made as on the date immediately preceding the Appointed Date shall be transferred to the Transferee Company.

ii. All taxes (including income tax, dividend distribution tax, buyback tax, equalisation levy, customs duty, goods and service tax etc.) paid or payable by the Transferor Company No. 1 and Transferor Company No. 2 in respect of the operations and/ or the profits of the business on and from the Appointed Date, shall be on account of the Transferee Company and, in so far as it relates to the tax payment (including without limitation income tax, dividend distribution tax, buyback tax, equalisation levy, customs duty, goods and service tax etc.), whether by way of deduction at source, advance tax or otherwise howsoever, by the Transferor Companies in respect of the profits or activities or operation of the business on and from the Appointed Date, the same shall be deemed to be the corresponding item paid by the Transferee Company, and, shall, in all proceedings, be dealt with accordingly.

iii. Any refund, benefits, budgetary support under the Tax Laws due to the Transferor Companies consequent to the assessments made on the Transferor Company No.1 and Transferor Company No. 2 or in any manner whatsoever and for which no credit is taken in the accounts as on the date immediately preceding the Appointed Date shall also belong to and be received by the Transferee Company.

iv. The Transferee Company shall be entitled to carry forward, avail or set-off any unutilized input tax credit of goods and service tax etc. lying unutilized in the Transferor Companies on and from the Effective Date.

v. Further, any tax holiday/deduction/exemption/benefits/ carry forward losses (including loss as per books of accounts) and unabsorbed depreciation (including unabsorbed depreciation as per books of accounts) entitled to / enjoyed/availed by the Transferor Companies under the provisions of Income Tax Act, 1961 or Goods and Service Tax, 2017 or

Department of industrial Policy and Promotion (DIPP),Ministry of Commerce & Industry or any such other law or policy shall stand transferred to and vested in or deemed to be transferred to and vested in the Transferee Company and be entitled to be/enjoyed/availed/utilized/claimed by the Transferee Company on and from the Appointed Date in the same manner as would have been entitled to/enjoyed/availed/utilized/claimed by the Transferee Company before implementation of this Scheme.

vi. Without prejudice to the generality of the above, all benefits including under the income tax, goods and service tax, etc., to which the Transferor Company No.1 and Transferor Company No. 2 is entitled to in terms of the applicable Tax Laws of the Union and State Governments, shall be available to and vest in the Transferee Company.

vii. Upon scheme becoming effective, the Transferor Company No. 1, Transferor Company No. 2 and the Transferee Company are expressly permitted to revise their financial statements and its income tax returns along with prescribed forms, filings and annexures under the Income-tax Act, 1961 and other statutory returns, including but not limited to tax deducted / collected at source returns, GST returns, as may be applicable. The Transferee Company has expressly reserved the right to make such provision in its returns and to claim refunds, advance tax credits, credit of tax under Section 115JB of the Income-tax Act, 1961 read with section 115JAA of the Income Tax Act, 1961, i.e. credit of minimum alternate tax, credit of dividend distribution tax, credit of tax deducted at source, etc. if any, as may be required for the purposes of/consequent to implementation of this Scheme, even if the prescribed time limits for filing or revising such returns have lapsed without incurring any liability on account of interest, penalty or any other sum. All compliances done by Transferor Companies will be considered as compliances by Transferee Company.

10. CONDUCT OF BUSINESS UNTIL EFFECTIVE DATE

i. With effect from the Appointed Date and up to and including the Effective Date,

Transferor Company No. 1 and Transferor Company No. 2 shall carry on and be deemed to have been carrying on its business and activities and shall stand possessed of and hold all of the business for and on account of and for the benefit of and in trust for Transferee Company. Further, all the profits or income accruing or arising to Transferor Companies or expenditure or losses arising to or incurred by Transferor Companies, with effect from the said Appointed Date shall for all purposes and intents be treated and be deemed to be and accrue as the profits or income or expenditure or losses of Transferee Company, as the case may be.

ii. With effect from the Appointed Date and up to and including the Effective Date, any statutory payment of provident fund, Employee state insurance etc. or any payment related to any taxes/duties/cess etc. is made within the due date prescribed as per the relevant law by the Transferor Company No.1 and Transferor Company No. 2, the same will be treated as payment made by the Transferee Company within the prescribed due dates.

iii. With effect from the date of approval of this Scheme by the Board of Directors of Transferee Company up to and including the Effective Date:

A. Transferor Company No. 1 and Transferor Company No. 2 shall carry on its business and activities with reasonable diligence, business prudence and shall not without the prior written consent of Transferee Company, (i) sell, alienate, charge, mortgage, encumber or otherwise deal with or dispose of the assets or any part thereof or undertake any financial commitments of any nature whatsoever, except in the ordinary course of business (ii) nor shall it undertake any new business or substantially expand its existing business;

B. The Transferor Company No. 1 and Transferor Company No. 2 shall not alter its equity capital structure either by fresh issue of shares or convertible securities (on a rights basis or by way of bonus shares or otherwise) or by any decrease, reduction, reclassification, sub-division, consolidation, re-organization or in any other manner, except by and with the consent of the Board of Directors of the Transferee Company; and

Anneal Injectables Private Limited PUNISKA HEALTHCARE PVT. LTD. For, Anneal Pharmaceuticals Pvt. Ltd.

DIRECTOR

Director

C. The Transferor Company No. 1 and Transferor Company No. 2 shall not declare or pay any dividends, whether interim or final, to their respective equity shareholders in respect of the accounting period prior to the Effective Date, except with the prior approval of the Board of Directors of Transferee Company.

iv. Notwithstanding anything contained in this Scheme, subject to applicable law, the Board of the Transferee Company shall be entitled to consider, pursue, manage, undertake and conduct the business of the Transferee Company including any corporate actions, dividends, issue of securities and bonus shares, buy back of securities, reorganization, restructuring of its business, strategic acquisition or sale of any business, joint ventures, business combinations as it may deemed pursuant and necessary in the interest of the Transferee Company or to give effect to obligations under applicable law.

11. SAVING OF CONCLUDED TRANSACTION

The transfer and vesting of the undertakings under Clause 5 and the continuance of legal proceedings by or against Transferor Company No. 1 and Transferor Company No. 2 as per Clause 8 shall not affect any transaction or proceedings already concluded by Transferor Companies on or after the Appointed Date till the Effective Date, to the end and intent that Transferee Company accepts and adopts all acts, deeds and things done and executed by Transferor Companies in respect thereto as done and executed on behalf of itself.

12. CONSIDERATION / ISSUE OF SHARES

The entire issued, subscribed and paid-up share capital of Transferor Company No. 1 and Transferor Company No. 2 are held by Transferee Company. Upon the Scheme becoming effective, no shares of Transferee Company shall be allotted to the Equity Shareholders of Transferor Company No. 1 and Transferor No. 2 as both the Transferor Companies are wholly owned subsidiaries of Transferee Company.

13. ACCOUNTING TREATMENT

PUNISKA HEALTHCARE PVT. LTD. For, Amneal Pharmaceuticals Pvt. Ltd.

Director/Authorised Signatory DIRECTOR Director

i. Notwithstanding anything else contained in the Scheme, the Transferee Company shall account for the amalgamation of the Transferor Companies in accordance with "Pooling of Interest Method" of accounting as laid down in Appendix C of Indian Accounting Standard (Ind AS) 103 'Business Combinations' notified under Section 133 of the Companies Act, 2013 under the Companies (Indian Accounting Standards) Rules, 2015, as may be amended from time to time in its books of accounts such that:

A. The Transferee Company shall record the assets and liabilities, if any, of the Transferor Company No.1 and Transferor Company No. 2 vested in it pursuant to the Scheme at the respective book values thereof and in the same form as appearing in the consolidated financial statement of the Transferee Companies.

B. The identity of the reserves of the Transferor Company No. 1 and Transferor Company No. 2 shall be preserved and the Transferee Company shall record the reserves of the Transferor Companies in the same form and at the same values as they appear in the consolidated financial statements of the Transferee Companies;

C. Pursuant to the amalgamation of the Transferor Company No. 1 and Transferor Company No. 2 with the Transferee Company, inter-Company loans and other balances, and transactions between the Transferee Company and the Transferor Companies, if any, appearing in the books of the Transferor Companies and /or the Transferee Company shall stand cancelled and there shall be no further obligation in that behalf;

D. No new shares will be issued or allotted by Transferee Company pursuant to Clause 12 above.

E. The surplus/deficit, if any arising after taking the effect of paragraph A, B and C hereinabove shall be adjusted in "Capital Reserve Account" in the financial statements of the Transferee Company and shall be presented separately from other capital reserves with disclosure of its nature and purpose in the notes.

Amneal Injectables Private Limited

PUNISKA HEALTHCARE PVT. LTD.

DIRECTOR

For, Amneal Pharmaceuticals Pvt. Ltd.

Director

F. In case of any differences in accounting policy between the Transferor Companies and the Transferee Company, the accounting policies followed by the Transferee Company will prevail to ensure that the financial statements of the Transferee Company reflect the financial position on the basis of consistent accounting policy.

G. Comparative financial information in the financial statements of the transferee company shall be restated for the accounting impact of merger, as stated above, as if the merger has occurred from the beginning of the comparative period.

14. COMBINATION OF AUTHORISED CAPITAL

i. Upon coming into effect of this Scheme and with effect from the Appointed Date, the authorised share capital of the Transferee Company shall automatically stand increased without any further act, instrument or deed on the part of the Transferee Company including payment of stamp duty and fees paid to Registrar of Companies, by the authorised share capital of the Transferor Company No 1 and Transferor Company No 2.

ii. Consequently, the Memorandum of Association and Articles of Association of the Transferee Company (relating to the authorized share capital) shall, without any further act, instrument or deed, be and stand altered, modified, amended and the approval of this Scheme shall be deemed to be sufficient for the purposes of effecting this amendment, and no further resolution(s) under Sections 13, 14, 61 and 64 and other applicable provisions of the Companies Act 2013 would be required to be separately passed, as the case may be and for this purpose the stamp duty and fees paid on the authorized capital of the Transferor Companies shall be utilized and applied to increase the authorized share capital of the Transferee Company and there would be no requirement for any further payment of stamp duty and/or fee by the Transferee Company for increase in the authorized share capital to that extent.

iii. The aforesaid combination of authorized share capital shall become operative on the scheme becoming effective.

Anneal Injectables Private Limited
Director/Authorised Signatory

PUNJSKA HEALTHCARE PVT. LTD.
DIRECTOR

For, Anneal Pharmaceuticals Pvt. Ltd.
Director

iv. Consequent upon the amalgamation of the Transferor Company No. 1 and Transferor Company No. 2 with the Transferee Company, the authorized share capital of the Transferee Company will be as under:

Particulars	**Rs.**
Authorized Share Capital	
60,10,00,000 Equity Share of Rs. 10 Each	6,01,00,00,000/-
3,90,00,000 Preference Share of Rs.10 Each	39,00,00,000/-
TOTAL	**6,40,00,00,000/-**

v. Upon the scheme becoming effective, Clause V of the Memorandum of Association of the Transferee Company shall respectively stand substituted by virtue of the Scheme to read as follows:

"Clause V of the Memorandum of Association of the Transferee Company:

The Authorised Share Capital of the Company is Rs. 6,01,00,00,000/- (Rupees Six hundred One crore only) divided into 60,10,00,000(Sixty crores Ten lacs) Equity shares of Rs.10/-(Rupees Ten Only) and Rs. 39,00,00,000/-(Rupees Thirty Nine Crore only) divided into 3,90,00,000(Three Crores Ninety Lacs) Preference shares of Rs. 10/-(Rupees Ten only)."

15. DISSOLUTION OF THE TRANSFEROR COMPANIES

On the Scheme becoming effective, the Transferor Company No. 1 and Transferor Company No. 2 shall stand dissolved without being wound-up.

PART III

GENERAL TERMS AND CONDITIONS

Amneal Injectables Private Limited
Director/Authorised Signatory

PUNISKA HEALTHCARE PVT. LTD.
DIRECTOR

For, Amneal Pharmaceuticals Pvt. Ltd.
Director

16. APPLICATION TO THE HON'BLE NCLT OR SUCH OTHER COMPETENT AUTHORITY

The Transferor Company No. 1, Transferor Company No. 2 and Transferee Company shall make all necessary applications and/or petitions under Sections 230 to 232 of the Companies Act, 2013 and other applicable provisions of the said Act to the jurisdictional Hon'ble NCLT for sanction of this Scheme.

17. MODIFICATIONS/ AMENDMENTS TO THE SCHEME

The Transferor Company No. 1, Transferor Company No. 2 and Transferee Company with approval of their respective Board of Directors may consent, from time to time, on behalf of all persons concerned, to any modifications / amendments or additions / deletions to the Scheme which may otherwise be considered necessary, desirable or appropriate by the said Board of Directors to resolve all doubts or difficulties that may arise for carrying out this Scheme and to do and execute all acts, deeds matters, and things necessary for bringing this Scheme into effect or agree to any terms and / or conditions or limitations that the Hon'ble NCLT or any other authorities under law may deem fit to approve of, to direct and / or impose. The aforesaid powers of Transferor Companies and Transferee Company to give effect to the modification / amendments to the Scheme may be exercised by their respective Board of Directors or any person authorized in that behalf by the concerned Board of Directors subject to approval of the Hon'ble NCLT or any other authorities under the applicable law to such modification/ amendments to the Scheme.

18. SCHEME CONDITIONAL ON APPROVALS/ SANCTIONS

The Scheme is conditional upon and subject to:

i. The Scheme being approved by the respective requisite majorities of the shareholders and / or creditors of the Transferor Companies and Transferee Company, if any, and as may be directed by the jurisdictional Hon'ble NCLT;

ii. The sanction of the Scheme by the NCLT under Sections 230 to 232 of the Act

Anneal Injectables Private Limited
Director/Authorised Signatory

PUNISKA HEALTHCARE PVT. LTD.
DIRECTOR

For, Anneal Pharmaceuticals Pvt. Ltd.
Director

in favour of Transferor Companies and the Transferee Company, as the case may be, under the said provisions and to the necessary order sanctioning the Scheme being obtained.

iii. The requisite consent, approval or permission of any other statutory or regulatory authority, which by law may be necessary for the implementation of this Scheme.

iv. Certified copy of the order of the NCLT sanctioning the Scheme being filed with the Registrar of Companies, Gujarat collectively by Transferor Company No.1, Transferor Company No. 2 and the Transferee Company.

19. EFFECT OF NON-RECEIPT OF APPROVALS

i. In the event of any of the said sanctions and approvals referred to in the preceding Clause 18 not being obtained and/or the Scheme not being sanctioned by the Hon'ble NCLT or such other competent authority, if applicable and/or the order not being passed as aforesaid before such date as the Board of Directors of Transferee Company and Transferor Companies may determine, the Scheme shall become null and void, and be of no effect, save and except in respect of any act or deed done prior thereto as is contemplated hereunder or as to any right, liability, or obligations which have arisen or accrued pursuant thereto and which shall be governed and be preserved or worked out as is specifically provided in the Scheme or as may otherwise arise in law and Transferee Company shall bear the charges and expenses in connection with the Scheme unless otherwise mutually agreed.

ii. In the event of this Scheme failing to take effect or it becomes null and void no rights and liabilities of whatsoever nature shall accrue to or be incurred inter-se to or / by the parties to the Scheme or any of them.

20. BINDING EFFECT

Upon the Scheme becoming effective, the same shall be binding on the Transferor Company No. 1, Transferor Company No. 2 and the Transferee Company and all concerned parties without any further act, deed, matter or

Amneal Impeoples Private Limited PUNISKA HEALTHCARE PVT. LTD. For, Amneal Pharmaceuticals Pvt. Ltd.

DIRECTOR

thing.

21. SEVERABILITY

If any part of this Scheme is found to be unworkable for any reason whatsoever, the same shall not, subject to the decision of the Board of directors of the Companies, affect the validity or implementation of the other parts and/ or provisions of this Scheme.

22. COSTS, CHARGES AND EXPENSES

All costs, charges, taxes including duties, levies and all other expenses, if any (save as expressly otherwise agreed), arising out of or incurred in carrying out and implementing this Scheme and matters incidental thereto, shall be borne by the Transferee Company.

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Director/Authorised Signatory

PUNISKA HEALTHCARE PVT. LTD.

DIRECTOR

For, Amical Pharmaceuticals Pvt. Ltd.

Director

Annexure "B"

PUNISKA HEALTHCARE PRIVATE LIMITED

Schedule

First Part

(Insert a short description of the freehold property of the transferor company)

1. **LAND:** Non agriculture industrial purpose land situated at Village – Pipan, Taluka – Sanand, District Ahmedabad bearing Survey no. 213/2, 213/3, 214/1, 214/2, 168/1/2, 168/1/1, 174/4.

2. **FACTORY BUILDING:**
   There are five (5) buildings constructed on the aforesaid land: -
   a) Production Block
   b) Engineering Warehouse
   c) Boiler House
   d) WTP/Scrap House
   e) DG Room.

3. **OTHER THAN FACTORY BUILDING:**
   Other constructions on the aforesaid land are: -
   a) Borewell
   b) Fountain
   c) Auto drain trap
   d) Weigh bridge building

Second Part

(Insert a short description of the leasehold property of the transferor company)

Following is the leasehold property in the name of the Company: -

1. Land (Dhara farm) situated at Block / Survey no. 168/2, Mouje – Pipan, Taluka – Sanand, District – Ahmedabad.

2. Offices Nos. 201 to 208 of commercial building known as 'W1', developed on Final Plot No. 31, T. P. Scheme No. 51 (Bodakdev-Makarba-Vejalpur), Survey No. 353/1(Old Survey No. 1026/1), situated at Village-Jodhpur, Taluka: Vejalpur, District-Ahmedabad.

3. Office No. 301, 302, 307 and 308 of commercial building known as 'W1', developed on Final Plot No. 31, T. P. Scheme No. 51(Bodakdev-Makarba-Vejalpur), Survey No. 353/1(Old Survey No. 1026/1), situated at Village-Jodhpur, Taluka: Vejalpur, District-Ahmedabad.

Third Part

(Insert a short description of all stocks, shares, debentures and other charges in action of the transferor company)

1. **Puniska Healthcare Kenya Limited**
   100% shareholding in Puniska Healthcare Kenya Limited (wholly owned subsidiary) holding in share capital of KES 1,00,00,000/- divided into 1,00,000 Ordinary shares of Shillings KES 100/- each.

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2. **Puniska Healthcare Mexico S. A. DE C. V.**
100% shareholding in Puniska Healthcare Mexico S. A. DE C. V. (wholly owned subsidiary) holding 50,000 shares of $1.00 M.N. each.

3. **Puniska Healthcare Colombia S.A.S**
100% shareholding in Puniska Healthcare Colombia S.A.S (wholly owned subsidiary) holding 2000 Ordinary shares of 10000/- Pesos ($10,000) each.

4. **Other Movables:**

Fixed Asset Block
Plant & Machinery
Laboratory Equipment's
Electric Installation
Furniture & Fixtures
Office Equipment
Computer Equipment
Vehicles
Computer Software
PPE Total
CWIP - Tangibles
CWIP - Intangibles
CWIP Total



PUNISKA HEALTHCARE PVT. LTD.

DIRECTOR

AMNEAL INJECTABLES PRIVATE LIMITED

Schedule

First Part

(Insert a short description of the freehold property of the transferor company)

1. **LAND:** Plant premises – Land situated at District Mehsana, Sub-district – Kadi, Taluka – Kadi, Village – Palli, Mouje, Survey / Block no. 506 (old survey no. 285/2, paiki 2) and Block no. 508 (old survey no. 285/2, paiki 1).

2. **FACTORY BUILDING:**
   There are five (5) constructions on the aforesaid land: -
   a. Manufacturing building
   b. Scrap yard
   c. Utility area
   d. Boiler room
   e. Canteen area

Second Part

(Insert a short description of the leasehold property of the transferor company)

There is no leasehold property in the name of the Company – Amneal Injectables Private Limited

Third Part

(Insert a short description of all stocks, shares, debentures and other charges in action of the transferor company)

1. **Other Movables:**

Fixed Asset Block
Plant & Machinery
Laboratory Equipment's
Electric Installation
Furniture & Fixtures
Office Equipment
Computer Equipment
Vehicles
Computer Software
PPE Total
CWIP - Tangibles
CWIP - Intangibles
CWIP Total

NATIONAL COMPANY LAW TRIBUNAL AHMEDABAD

Amneal Injectables Private Limited

Director/Authorised Signatory